

		Petitioner is ordered to give notice.
8	Hall – Trust; 30-2026-01567948	Demurrer and Motion to Expunge Respondent Sabrina E. Louis’s Demurrer to Petition to Invalidate Will and Trust, etc. (ROA 4) is OVERRULED. As set forth below, the court desires further information from the parties on Respondent’s Motion to Expunge Lis Pendens (ROA 43). I. DEMURRER This proceeding arises from a petition filed October 8, 2025 by David Elijah Hall (Petitioner) concerning the Elijah Nathan Hall Separate Property Trust dated October 10, 2022 (Trust) and a related will. The petition asserts the Trust and related documents were the product of undue influence and/or a lack of capacity. Respondent demurs to the petition on the ground it is time-barred under Probate Code section 16061.8 and barred by the doctrine of laches. A. Probate Code section 16061.8 “A general demurrer will lie where the complaint “has included allegations that <i>clearly</i> disclose some defense or bar to recovery.” [Citations.] A demurrer can be used only to challenge defects that appear on the face of the complaint or from matters outside the pleading that are judicially noticeable. [Citations.] ‘To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action.’ [Citation.] The demurrer admits the truth of all material facts properly pleaded, including all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law.” (<i>Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.</i> (2024) 102 Cal.App.5th 281, 298–299.) “A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.”] (<i>Coalition for an Equitable Westlake/MacArthur Park v. City of</i>

Los Angeles (2020) 47 Cal.App.5th 368, 376, internal quotation marks and citations omitted.)

When a revocable trust becomes irrevocable upon the death of the settlor, the trustee must notify the beneficiaries of the trust and heirs of the deceased settlor. (Prob. Code, § 16061.7, subd. (a)(1) & (b).) The notification must contain certain specified information. (Prob. Code, § 16061.7.) When the notice satisfies the statutory requirements, any action to contest the trust must be filed within 120 days from the date the notice was served. (Prob. Code, §16061.8.)

Petitioner’s time-bar argument is based on her assertion that she served a fully compliant notice on November 12, 2024. In support of this assertion, Respondent submits a copy of her notice and asks the court to take judicial notice of it. The date and fact of service of the notice cannot be judicially noticed. (*Williams v. Wraxall* (1995) 33 Cal.App.4th 120, 130, fn. 7 [a court “cannot take judicial notice of the truth of hearsay statements in decisions or court files, including pleadings, affidavits, testimony, or statements of fact”].)

Accordingly, the demurrer could only be sustained if the petition disclosed service of a fully compliant notice on the asserted date. The petition does not reference the asserted notice. Accordingly, the demurrer is **OVERRULED** on this ground.

B. Laches

As a general rule “the existence of laches is a question of fact to be determined by the trial court in light of all of the applicable circumstances. . .” (*Miller v. Eisenhower Medical Center* (1980) 27 Cal.3d 614, 624; see *Brown v. Oxtoby* (1941) 45 Cal.App.2d 702 707 [“Laches is a question of fact, on the evidence, and each case becomes largely a law unto itself”].) “The defense of laches requires unreasonable delay plus either acquiescence in the act about which plaintiff complains or prejudice to the defendant resulting from the delay.” (*Johnson v. City of Loma Linda* (2000) 24 Cal.4th 61, 68, fns. omitted.) “Laches may be raised by demurrer,

but only if the complaint shows on its face unreasonable delay *plus* prejudice or acquiescence.” (*Conti v. Board of Civil Service Commissioners* (1969) 1 Cal.3d 351, 362.) The petition does not make either of the required showings. The demurrer is **OVERRULED** on this ground.

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II. MOTION TO EXPUNGE

On or about December 18, 2025, Petitioner allegedly served Respondent with a lis pendens on certain real property. By this motion, Respondent seeks to expunge the lis pendens. A lis pendens must be expunged if: (1) the pleading on which the *lis pendens* is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of the real property claim(s) by a preponderance of the evidence. (Code of Civ. Proc., §§ 405.31 and 405.32.) The party opposing a motion to expunge has the burden of showing both the existence of a real property claim and the probable validity of that claim. (*Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647; Code of Civ. Proc., § 405.30.)

A “real property claim” is one which, if meritorious, would affect title to, or the right to possession of, specific real property; or the use of an easement identified in the pleading. (Code of Civ. Proc., § 405.4.) The allegations of the petition determine whether a “real property claim” is involved; no independent evidence is required. (*Urez Corp. v. Superior Court* (1987) 190 Cal.App.3d 1141, 1149.)

Here, the petition seeks to invalidate a trust. If the trust holds real property, the attempt to invalidate the trust asserts a real property claim. “The trustee of a trust holds title to real property. Unlike a corporation, a trust is not a legal entity. Rather, a trust is a fiduciary *relationship* with respect to property. When property is held in trust, there is always a divided ownership of property, generally with the trustee holding legal title and the beneficiary holding equitable title. Trusts do not

	own property; trustees do.” (<i>Newell v. Superior Court</i> (2024) 107 Cal.App.5th 728, 736–737.) However, it is impossible to determine from the petition and/or the Trust attached thereto, whether the Trust holds any real property. The initial paragraphs of the Trust (attached as Exhibit B to the petition) state the settlor has placed his “interest in the property described in Schedule A” into the Trust. However, no Schedule A is attached to the Trust submitted to the court as Exhibit B. Section 2.04 of the Trust addresses retained use of residential properties but does not identify any property held in trust. To further complicate matters, no party has placed the subject lis pendens before the court or even identified the real property subject to the lis pendens. And although Respondent argues the lis pendens should be expunged because the notice was filed in the incorrect court, bears an improper case number, and was not properly served, Respondent did not submit the notice or any document showing the purported service. (The motion asserts the Notice of Lis Pendens with attached proof of service is attached thereto as Exhibit A. Exhibit A, however, is two largely blank pages.) Petitioner should be prepared to address the court’s concerns as to whether the petition asserts a real property claim. Respondent should be prepared to address the court’s concerns regarding the failure to provide the lis pendens that is the subject of the motion, specify the property allegedly subject to the lis pendens, or provide the allegedly defective notice of the lis pendens.
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